

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DOUGLAS FRIDAY

SUMMONS

Plaintiffs,

-against-

THE CITY OF NEW YORK, LIEUTENANT ROGER
LURCH, TAX ID NUMBER: 917904,
IN HIS INDIVIDUAL AND OFFICIAL CAPACITY;
AND JOHN DOE NEW YORK POLICE OFFICERS
1-4, IN THEIR INDIVIDUAL AND OFFICIAL
CAPACITIES AS MEMBERS OF THE NEW YORK
CITY POLICE DEPARTMENT

Index No.:

Date Purchased:

Plaintiff designates:
place of trial.

New York County as

The place for trial.
Basis for venue:
Accident Site,

Defendants.

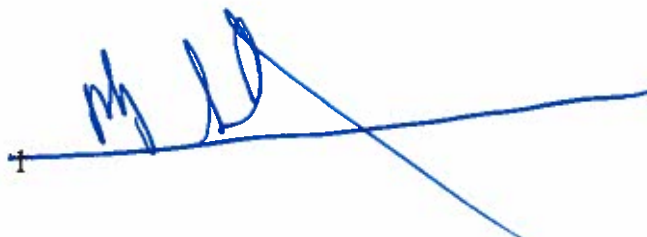
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YOU ARE HEREBY SUMMONED to answer the complaint in this action, to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 30, 2014

Yours, etc.,
MARNI F. SCHLESINGER, ESQ.
Apicella & Schlesinger
Attorneys for Plaintiff
1454 St. Nicholas Avenue
New York, New York 10033
(212) 568-4265

To: The City of New York
100 Church Street
New York, New York 10007

Lieutenant Roger Lurch



24th Precinct
100 West 100th Street
New York, New York 10025

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DOUGLAS FRIDAY

Plaintiffs,
-against-

VERIFIED
COMPLAINT

THE CITY OF NEW YORK, LIEUTENANT ROGER
LURCH, TAX ID NUMBER: 917904, AND
OFFICIAL CAPACITY; AND JOHN DOE NEW
YORK POLICE OFFICERS 1-4, IN THEIR
INDIVIDUAL AND OFFICIAL CAPACITIES AS
MEMBERS OF THE NEW YORK CITY POLICE
DEPARTMENT,

Defendants.

----- X

Plaintiff, Douglas Friday, by his attorney, Marni F. Schlesinger, an attorney at the law firm of Apicella & Schlesinger, complaining of the Defendants herein, upon information and belief respectfully alleges:

PRELIMINARY STATEMENT

1. This is a civil action in which Plaintiff Douglas Friday, seeks relief for the violation of his rights secured by 42 USC 1983, the Fourth and Fourteenth Amendments to the United States Constitution.

2. The claims arise from an August 10, 2012 incident in which Officers of the New York City Police Department acting under color of state law, intentionally and willfully subjected Douglas Friday to inter alia false arrest using excessive force and malicious prosecution.

3. Plaintiff seeks monetary damages (special compensatory, and punitive) against Defendants as an award of costs and attorneys' fees, and such other and further relief as this Court deems just and proper.

PARTIES

4. Plaintiff, Douglas Friday, is a United States Citizen and at all times herein relevant resided at 70 West 95th Street, Apt. 12D, New York, New York.

5. The City of New York is a municipal corporation organized under the Laws of the State of New York.

6. Police Officer, Lieutenant Roger Lurch, Tax Identification number 917904, and Police Officer John Doe #1 and Police Officer John Doe #2 and Police Officer John Doe #3 and Police Officer John Doe #4, are sued in their individual and professional capacities.

7. At all times mentioned, Defendants were acting under color of the statutes, ordinances, regulations, policies and customs and usages of the City of New York.

FACTUAL ALLEGATIONS

8. Plaintiff, Douglas Friday was arrested while he was walking on or about 95th Street and West End Avenue, New York, New York. Douglas Friday is a African American male who was 29 years old at the time of this incident.

9. On August 10, 2012 at approximately 1 A.M. at or about 95th Street and West End Avenue, New York Avenue, in the County of New York, York, City and State of New York Douglas Friday, was suddenly and without warning unlawfully detained and held within the custody of more than six (6) days, police officers from the New York City Police Department their agents servants and or employees who unlawfully and without justification did stop, detain, question, search, and arrest Douglas Friday against his will and without probable cause and taking Douglas Friday into custody without telling Douglas Friday why they were detaining him.

10. Police Officer Police Officer, Lieutenant Roger Lurch, Tax Identification

number 917904 and John Doe #1, Police Officer John Doe #2, Police Officer John Doe #3 and Police Officer John Doe #4 were the Police Officers who stopped Douglas Friday on 95th Street and West End Avenue, New York Avenue, in the County of New York, York, City and State of New York.

AS AND FOR A FIRST CAUSE OF ACTION

11. That on or about the 23rd day of April, 2013, the plaintiff filed a Notice of Claim in writing, sworn to by plaintiff, and served upon the defendants, THE CITY OF NEW YORK, which Notice of Claim set forth the name and post office address of the plaintiff and of his attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose, and the items of damage or injuries claimed to have been sustained so far as then practicable.

12. That more than ninety (90) days have elapsed from the presentation of the Notice of Claim and the statutory Notice of Claim hearing was held October 11, 2013.

13. That more than thirty (30) days have elapsed from the presentation of the aforesaid Notice of Claim and the defendants have failed and neglected to settle or adjust the claim.

14. That this action is commenced within one (1) year and ninety (90) days after the happening of the event upon which the claim is based.

15. That at all times hereinafter mentioned plaintiff, was a resident of the County of New York, City and State of New York.

16. That on or about August 10, 2012 , at or about 1 A.M. at or about 95th Street and West End Avenue, New York, New York, in the County of New York, York, City and State of New York and continuing at the 24th precinct and then central booking, when plaintiff was

wrongfully, without provocation and without probable cause, detained, harassed, arrested, confined, assaulted, battered, and otherwise abused when he was prevented from lawfully returning to his home, forcibly detained handcuffed, pushed into a police vehicle, muscled, and strong armed by members of the 24th precinct of the New York City Police Department without any explanation as to the reason.

17. That at all times hereinafter mentioned plaintiff was wrongfully, without provocation and without probable cause, detained, arrested, harassed, confined, assaulted, battered, and otherwise abused, beginning August 10, 2012 and continuing up through and including August 16, 2012 as aforesaid.

18. That upon information and belief all charges filed against Douglas Friday were dismissed on February 27, 2013 on motion of DA, because there did not exist legally sufficient and or legally competent evidence for Douglas Friday to have been arrested, detained, confined, harassed, assaulted, battered, and otherwise abused.

19. As a result of the foregoing, plaintiff was caused to sustain damage and personal injury, including, but not limited to bodily injury, deprivation of liberty, physical and mental suffering, indignity, humiliation, shame and disgrace, loss of personal effects, and was caused to expend sums for legal services and other expenses.

20. That defendants' conduct in detaining, arresting, confining, assaulting, battering, harassing, and otherwise abusing the plaintiff as aforementioned under the circumstances of this case was so egregious as to deviate from acceptable police misconduct and police activity as to demonstrate an intentional, wanton and/or reckless disregard for proper procedures and the rights of the plaintiff.

21. As a result thereof, plaintiff was damaged in a sum far in excess of the

jurisdictional limits of this Court pursuant to CPLR 3017 (e).

**AS AND FOR A SECOND CAUSE OF ACTION
FOR FALSE ARREST AND FALSE IMPRISONMENT**

22. Plaintiff repeats, reiterates and realleges each and every paragraph of this complaint numbered "1" through "21" with the same force and effect as if more fully set forth herein at length.

23. That by reason of the foregoing, on or about August 10, 2012 and continuing thereafter until on or about August 16, 2013 and through the dismissal on February 27, 2013, the defendants, their agents, servants and/or employees, without just or probable cause, without a warrant, unlawfully and maliciously detained, assaulted, imprisoned and incarcerated the plaintiff.

24. As a result of the foregoing, plaintiff was caused to sustain and continues to sustain damage and injury, including, but not limited to physical personal injury, deprivation of liberty, physical and mental suffering, indignity, humiliation, shame and disgrace, loss of personal effects and was caused to expend sums for legal services and other expenses.

25. As a result thereof, plaintiff was damaged and continues to be damaged in a sum far in excess of the jurisdictional limits of this Court pursuant to CPLR 3017 (c).

**AS AND FOR A THIRD CAUSE OF ACTION
FOR MALICIOUS PROSECUTION**

26. Plaintiff, repeats, reiterates, and realleges each and every paragraph of this complaint numbered "1" through "25" with the same force and effect as if more fully set forth herein at length.

27. That on or about August 10, 2012, and continuing thereafter until on or about August 16, 2013 and through the dismissal on February 27, 2013, on the complaint

of the defendants, which was contrary to and in violation of the law, a criminal proceeding was maliciously commenced and maintained against the plaintiff in the Criminal court of the State of New York, County of New York in which proceeding said plaintiff, without probable cause, and without a warrant, was charged with violating the criminal laws of the state of New York.

28. As a result of the foregoing, plaintiff was caused to sustain and continues to sustain damage and injury, including, but not limited to physical injury, deprivation of liberty, physical and mental suffering, indignity, humiliation, shame and disgrace, loss of personal effects and was caused to expend sums for legal services and other expenses.

29. As a result thereof, plaintiff was damaged and continues to be damaged in a sum far in excess of the jurisdictional limits of this Court pursuant to CPLR 3017 (c).

**AS AND FOR A FOURTH CAUSE OF ACTION
FOR VIOLATION OF 42 OF THE
UNITED STATES CODE SECTION 1983
AS AND AGAINST POLICE OFFICER**

30. Plaintiff, repeats, reiterates, and realleges each and every paragraph of this complaint numbered "1" through "29" with the same force and effect as if more fully set forth herein at length.

31. In confining, assaulting, battering, harassing, threatening, and otherwise abusing, detaining and arresting plaintiff without legally sufficient evidence and/or probable cause or a warrant, defendants' employees, agents, and Police Officers from the 24th precinct violated plaintiff's constitutional rights under the 4th amendment of the Constitution of the United States of America to be secure in his person, house, car, papers, and effects, against unreasonable searches and seizures.

32. In confining, assaulting, battering, harassing, threatening, and otherwise

abusing, detaining and arresting, plaintiff without legally sufficient evidence and/or probable cause or a warrant defendants' employees, agents, and Police officers from the 24th precinct violated plaintiff's constitutional rights under the 5th amendment of the Constitution of the United States of America not to be held to answer for a crime, unless on a presentment or indictment of a Grand Jury, not to be put in jeopardy of life and limb, nor to be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty, or property, without due process of law.

33. In confining, assaulting, battering, harassing, threatening, and otherwise abusing, detaining and arresting, plaintiff without legally sufficient evidence and/or probable cause or a warrant defendants' employees, agents, Police officers from the 24th precinct violated plaintiff's constitutional rights under the 14th amendment of the Constitution of the United States of America to not be deprived of life, liberty, or property, without due process of law and not to be denied the equal protection of the laws.

34. That Police Officers from the 24th precinct of THE NEW YORK CITY POLICE DEPARTMENT, wantonly, willingly and knowingly deprived plaintiff of his Constitutional rights as heretofore mentioned.

35. That Police Officers from the 24th precinct of THE NEW YORK CITY POLICE DEPARTMENT, were negligently trained, supervised, and monitored and supervisors failed to promulgate and put into effect appropriate rules, regulations and procedures to be governed by so as to prevent the willful disregard of plaintiff's humane and constitutional rights, thereby violating plaintiff's 4th, 5th, and 14th amendment rights guaranteed by the Constitution of the United States and plaintiff's Civil rights as set forth by Section 1980, et seq. of Chapter 42 of the United States Code.

36. That the willful disregard of plaintiff's constitutional rights by defendants

employees, agents and Police Officers from the 24th precinct of THE NEW YORK CITY POLICE DEPARTMENT, in violation of Title 42 US Code Section 1983 as hereinbefore alleged was the result of the official policy of the City of New York Police Department.

37. That the willful disregard of plaintiff's constitutional rights and the defendants violation of 42 US Code 1983 as hereinbefore alleged occurred because of the customs followed by the defendants in such cases.

38. Defendants employees, agents and Police officers of the 24th precinct of THE NEW YORK CITY POLICE DEPARTMENT, acted with deliberate indifference to the plaintiff's constitutional rights as hereinbefore set forth in that said defendants failed to be adequately trained, supervised, and disciplined in his police procedures and in matters involving probable cause and lack of probable cause and identification, detention, arrest, indictment, and the investigation and processing of suspects and more particularly the plaintiff.

39. As a result thereof, plaintiff was damaged and continues to be damaged in a sum far in excess of the jurisdictional limits of this Court pursuant to CPLR 3017 (c).

**AS AND FOR A FOURTH CAUSE OF ACTION
FOR VIOLATION OF 42 OF THE
UNITED STATES CODE SECTION 1983
AS AND AGAINST POLICE OFFICER
LIEUTENANT ROGER LURCH**

40. Plaintiff, repeats, reiterates, and realleges each and every paragraph of this complaint numbered "1" through "39" with the same force and effect as if more fully set forth herein at length.

41. In confining, assaulting, battering, harassing, threatening, and otherwise abusing, detaining and arresting plaintiff and indicting plaintiff without legally sufficient

evidence and/or probable cause or a warrant defendants violated plaintiff's constitutional rights under the 4th, 5th and 14th amendments of the Constitution of the United State of America.

42. That THE CITY OF NEW YORK negligently trained, supervised, and monitored its personnel and failed to promulgate and put into effect appropriated rules, regulations and procedures governing its Police Officers, so as to prevent the willful disregard of plaintiff's constitutional rights thereby violating plaintiff's 4th, 5th, and 14th amendment rights guaranteed by the Constitution of the United States and plaintiff's Civil Rights as set forth by Section 1980, et seq. Of Chapter 42 of the United States Code.

43. In confining, assaulting, battering, harassing, threatening, and otherwise abusing, detaining and arresting plaintiff without legally sufficient evidence and/or probable cause or a warrant defendants violated plaintiff's constitutional rights under the 4th amendment of the Constitution of the United States of America to be secure in his person, house, (car) papers, and effects, against unreasonable searches and seizures.

44. In confining, assaulting, battering, harassing, threatening, and otherwise abusing, detaining and arresting plaintiff without legally sufficient evidence and/or probable cause or a warrant defendants violated plaintiff's constitutional rights under the 5th amendment of the Constitution of the United States of America not to be held to answer for a crime, unless on a presentment or indictment of a Grand Jury, not to be put in jeopardy of life and limb, nor to be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty, or property, without due process of law.

45. In confining, assaulting, battering, harassing, threatening, and otherwise abusing, detaining and arresting plaintiff without legally sufficient evidence and/or probable cause or a warrant defendants violated plaintiff's constitutional rights under the

14th amendment of the Constitution of the United States of America to not be deprived of life, liberty, or property, without due process of law and not to be denied the equal protection of the laws.

46. That the willful disregard of plaintiff's constitutional rights and the defendants' violation of Title 42 US Code Section 1983 as hereinbefore alleged was the result of the official Municipal policy of the City of New York and the Police Department of the City of New York.

47. That the willful disregard of plaintiff's constitutional rights and the defendants violation of 42 US Code 1983 as hereinbefore alleged occurred because of the customs followed by the defendants in such cases.

48. The defendants acted with deliberate indifference to the plaintiff's constitutional rights as hereinbefore set forth in that said defendants failed to adequately train, supervise, and discipline their police officers and personnel in matters involving probable cause and lack of probable cause and identification, detention, arrest, indictment, obtaining warrants, and the investigation and processing of suspects and more particularly the plaintiff.

49. As a result thereof, plaintiff was damaged in a sum far in excess of the jurisdictional limits of this Court pursuant to CPLR 3017 (e).

**AS AND FOR A FIFTH CAUSE OF ACTION
FOR ATTORNEYS FEES**

50. Plaintiff, repeats, reiterates, and realleges each and every paragraph of this complaint numbered "1" through "50" with the same force and effect as if more fully set forth herein at length.

51. Pursuant to Title 42 US Code Section 1983, plaintiff is entitled to recover

reasonable attorneys fees for the violation of said statute.

52. As a result thereof plaintiff is entitled to recover such amount as and for attorneys fees as to the court may seem reasonable.

WHEREFORE, plaintiff demands judgment against the defendants in the First Cause of Action, in the Second Cause of Action, in the Third Cause of Action, in the Fourth Cause of Action, and together with reasonable attorneys fees as demanded in the Fifth Cause of Action in amounts in excess of the jurisdictional limits of this Court pursuant to CPLR 3017 (c), together with the costs and disbursements of this action.

Dated: New York, New York
April 30, 2014

Yours, etc.,

Marni F. Schlesinger, Esq.
Apicella & Schlesinger
Attorneys for Plaintiff
1454 St. Nicholas Avenue
New York, New York 10033
(212) 568-4245

VERIFICATION BY ATTORNEY

STATE OF NEW YORK)
 S.S.:
COUNTY OF NEW YORK)

I, the undersigned attorney, admitted to practice in the Courts of the State of New York, states as follows:

That I am the attorney for the Plaintiff (s) in the within action.

I have read the foregoing Summons and Verified Complaint and know the contents thereof; the same is true to my own knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters, I believe them to be true.

The reason this verification is made by me and not the Plaintiffs is because Plaintiffs do not reside within the county that your affirmant maintains his practice.

The grounds of my belief as to all matters not stated upon my own knowledge are based upon conversations and correspondence with Plaintiffs and others.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
February , 2014

HERBERT L. SCHMELL

STATE OF NEW YORK, COUNTY OF

I, the undersigned, an attorney admitted to practice in the courts of New York State,

☐ Certification By Attorney certify that the within has been compared by me with the original and found to be a true and complete copy.

☐ Attorney's Affirmation state that I am the attorney(s) of record for

action; I have read the foregoing in the within and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated:

STATE OF NEW YORK, COUNTY OF New York

SS.:

The name signed must be printed beneath

I, the undersigned, being duly sworn, depose and say: I am the Plaintiff

☒ Individual Verification in the action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true.

☐ Corporate Verification the of corporation and a party in the within action; I have read the foregoing and know the contents thereof; and the same is true to my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true. This verification is made by me because the above party is a corporation and I am an officer thereof.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Sworn to before me on MAY 2, 2014

PHILIP S. SCHLESINGER
NOTARY PUBLIC, State of New York
#30-3502785

Qualified in Nassau County

Douglas Friday
DOUGLAS FRIDAY
The name signed must be printed beneath

STATE OF NEW YORK, COUNTY OF Nassau

SS.:

(If more than one box is checked—indicate after names type of service used.)

I, the undersigned, being sworn, say: I am not a party to the action, am over 18 years of age and reside at

On I served the within

☐ Service by Mail by mailing a copy to each of the following persons at the last known address set forth after each name below.
☐ Personal Service on Individual by delivering a true copy of each personally to each person named below at the address indicated. I knew each person served to be the person mentioned and described in said papers as a party therein:
☐ Service by Electronic Means by transmitting a copy to the following persons by ☐ FAX at the telephone number set forth after each name below ☐ E-MAIL at the E-Mail address set forth after each name below, which was designated by the attorney for such purpose, and by mailing a copy to the address set forth after each name.
☐ Overnight Delivery Service by dispatching a copy by overnight delivery to each of the following persons at the last known address set forth after each name below.